

ONLINE RESOURCES AS SUPPLEMENTAL INSTRUCTIONAL MATERIALS

This regulation supplements Policy 5045 by providing processes and procedures for selecting Online Resources that may be considered supplemental instructional materials as defined by Policy 5045.

A. Philosophy. LCPS has a legal and ethical responsibility to protect our students and their personal information when they are using online resources. Tools provided and supported by LCPS should be the first choice for teachers and schools to address specific instructional needs. When identifying and selecting supplemental online resources, the primary goal of the school division is to support curricular objectives while mitigating the potential risk to students by:

1. Limiting the “digital footprint” of students while they are in the care of LCPS,
2. Prioritizing the requirement to protect students’ privacy over the need for supplemental instructional materials,
3. Partnering with service providers to ensure online resources are safe and appropriate for student use and that providers have adequate safeguards in place to protect student information,
4. Standardizing data integration solutions to share data safely and securely,
5. Aligning our practices with recommendations from national K-12 data privacy organizations, and
6. Communicating with families about online resources in use in their child’s classrooms and requesting consent for sharing student information when required by law.

B. Definitions

1. Online Instructional Resources. Any web-delivered software application (including web-based software, Chrome Apps, or Chrome Extensions) used for instruction and requires teachers or students to log in to access the service. Login methods may vary, including (but are not limited to) access codes, Single-Sign-On

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services (like Google, Clever, or Microsoft Entra), or locally created usernames and passwords. Exceptions include:

- a. Websites that are freely available and do not require student or teacher logins do not fall under this regulation but may be considered supplemental instructional resources as defined by Policy 5045.
- b. Professional resources for teachers, including websites where teachers access, create, and/or download digital materials that may be considered supplemental instructional resources but do not require students to log in or access the online service to view or use the resources, also do not fall under this regulation.

C. Age of Students. The guidance in this regulation regarding safe use of online resources applies to all students under the age of 18, regardless of any age restrictions defined by individual service providers. This regulation ensures LCPS complies with legal responsibilities under state and federal laws and policies. Providers' terms of service that may indicate a minimum age for use of their software (typically 13 years old) are designed to comply with the provider's responsibilities under the Children's Online Privacy Protection Act ([COPPA](#)). Guidance in this regulation must be followed regardless of any assurances from providers that their products are "COPPA Compliant."

D. Resources Review Process. All online resources used with students must first be reviewed and approved through the division's software review process before accounts are created for students and the site is used for instruction.

1. LCPS has a defined process for reviewing installed and online software titles called *Onboard*. The Onboard process is supported by teams in the Departments of Digital Innovation, Student Services and Teaching and Learning.

2. As part of the review process, titles are evaluated for:

- a. Instructional value and alignment with LCPS practices,

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- b. Duplication or overlap of functionality of supported titles,
- c. Technical compatibility with LCPS systems,
- d. Data privacy, security, and interoperability, and
- e. Accessibility.

3. To request a review, schools and school-based staff can consult with their school's Instructional Facilitator, Technology (IFT). IFTs will:

- a. Discuss the instructional need the teacher or school is trying to address,
- b. Work with the teacher to find solutions that may already be available before requesting a review of a new title, and
- c. Act as a liaison between the teacher or school and the software review team.

4. Division-based staff can consult with the Instructional Software Specialist in the Office of Instructional Technology to initiate an Onboard review.

D. Catalog of Reviewed Titles. LCPS maintains a catalog of titles that have been reviewed through the Onboard review process. All reviewed titles are listed in the catalog, along with guidance about how to use a title safely with students. The catalog is available to all staff through LCPS GO. A parent-facing version is publicly available on the LCPS website. Resource titles in the catalog are designated in one of the following approval categories:

1. Supported. A Supported title is provided by LCPS to all students and teachers or specific subsets of students and teachers. These titles are selected by the division to meet specific instructional needs, and help is available if users need technical or instructional support.

2. Approved. An Approved title is not provided by LCPS but has been

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reviewed by the school division and is safe for student and teacher use. Parental consent is not required for Approved titles.

3. Approved with Cautions. An Approved with Cautions title is not provided by LCPS but is generally safe to use with students if specific guidance is followed. That guidance is provided in the catalog. Parental consent is generally not required unless students require an account to access or use the online resources.

4. Parental Consent Required. A Parental Consent Required title may be used with students as long as verifiable parental consent is obtained before accounts are created for students or the site is used for instruction. Under certain circumstances, online resource providers act as “school officials” (as defined by the Family Educational Rights and Privacy Act [[FERPA](#)]) and LCPS is able to consent on behalf of parents to share data with those providers.

5. Denied. A Denied title is one that is not allowed by LCPS and may not be used with students. Titles may be denied for a variety of reasons based on the findings of the Onboard review team. Common reasons for denial include, but are not limited to:

- a. Instructional misalignment - a requested tool that does not align with LCPS instructional practices or priorities will be marked as denied.
- b. Duplication of functionality - a requested tool that duplicates, in whole or in part, the core features of a supported tool that is provided by the division will be marked as denied (for example, an assessment tool may be denied because the division provides access to supported assessment tools).
- c. Technical incompatibility - a requested tool that would not function properly in the LCPS technical environment without technical changes would be marked as denied.
- d. Data Privacy or interoperability concerns - a requested tool that does not adhere to LCPS privacy requirements, or is not compatible with LCPS data systems, would be marked as denied.

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E. Division-Selected Online Resources. LCPS adopts online resources as Supplemental Instructional Materials to address identified instructional needs. Because providers of division-selected software titles are typically acting as “school-officials” as defined by FERPA, parental consent for specific division-selected online software is not required under most circumstances. To be considered a “school official,” providers must sign the district’s Data Privacy Agreement, and the data shared with the provider must be automated and managed by the school division.

F. School-Selected Online Resources. Schools may adopt online resources as supplemental instructional materials provided the title is reviewed via Onboard review process and the title is not designated as denied as a result of that review. Schools may need to obtain verifiable parental consent *prior* to creating accounts for students or asking students to create their own accounts. Parental consent is not required when providers meet the criteria of a “school official” as defined by FERPA. To be considered a “school official,” providers must sign the district’s Data Privacy Agreement and the data shared with the provider must be managed by the school division. When required, consent must be obtained from parents each school year. Schools that contract with online resource providers are responsible for requesting that the provider delete data (as specified by the district’s Data Privacy Agreement) once the provider is no longer contracted by the school.

G. Teacher-Selected Online Resources. Teachers may adopt online resources as supplemental instructional materials provided that the software has been reviewed via the Onboard review process and the title is not designated as denied as a result of that review. Teachers may be responsible for obtaining verifiable parental consent prior to creating accounts for students (or asking students to create their own accounts). Titles designated as Parental Consent Required require parental consent. Titles designated as Approved with Cautions may require parental consent depending on how the title is used. Generally, consent is required if accounts are created for students (or students have to create their own accounts). Teachers should follow guidance provided in the Ed Tech catalog and, when in doubt, err on the side of obtaining consent from parents or guardians before creating accounts for students or asking students to create their own accounts. Consent must be obtained from parents each school year using one of the district-created permission templates available in Permission Click. Teachers who adopt online resources as supplemental instructional materials are responsible for ensuring

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providers delete student data once the service is no longer in use by a student (typically at the end of a school year).

H. Change of Status for Reviewed Resources. LCPS may, at any time, revisit titles that have been previously reviewed. New information or circumstances may lead to a change in the guidance for if (or how) a title should be used and a change in designation in the Ed Tech catalog. Examples of conditions that may lead to a title being re-reviewed include, but are not limited to, changes in a vendor's Terms of Service or Privacy Policy, additions or changes to the services provided, or district adoption of supported tools that provide similar functionality to a reviewed title. Teachers and schools should consult the Ed Tech catalog each school year before using tools with students to ensure the guidance for the tools they have selected has not changed.

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Cross Ref: [Policy 5045](#), Criteria and Selection of Supplemental Instructional Materials; Federal Trade Commission Children's Online Privacy Protection Act ([COPPA](#)) Information; U.S. Department of Education Family Educational Rights and Privacy Act ([FERPA](#)) Information